

Pasquale Stanzione, Privacy Guarantor: "I also receive calls from call centers"

The jurist who has held the role since 2020: "Technology offers great opportunities, but if misused, it can also become a powerful weapon that limits our freedoms"

Interview with Pasquale Stanzione, President of the Guarantor for the protection of personal data (by Giuliano Aluffi, La Repubblica, February 16, 2024)

"Look, if you call me again, I will report you to the Guarantor." If there is today a figure in the institutions who, in the popular imagination, is seen as a bulwark and a repairer of wrongs, especially against the invisible horde of telemarketers, it is the Authority for the protection of personal data, embodied in the person of its president, the Guarantor. Since 2020, the role has been held by the jurist Pasquale Stanzione, who has managed to show himself at the forefront compared to his European colleagues both in facing the newest threats to privacy, such as ChatGPT, and in advocating for civil advancements such as oncological oblivion, which became law only a few months ago. Professor Stanzione, as befits his role, is a person who appreciates discretion and confidentiality. And calls from call centers do not spare him either...

President, when privacy is mentioned, everyone immediately thinks of calls from call centers. Although annoying, can we consider them a useful spur to reflect on the importance of privacy, which otherwise many would not have thought about, exposing themselves to much greater dangers?

"I must preface that privacy is a constellation of rights that touches many aspects of life and relationships, and associating it with just one aspect is reductive. However, I understand that many may represent it as the right not to be subjected to the continuous bombardment of telemarketing, a tool through which, among other things, contracts are often fraudulently activated, most often to the detriment of the elderly. And so, the defense against telemarketing ends up becoming one of the most tangible manifestations of privacy. If this has helped to appreciate a right whose importance would otherwise go unnoticed, then so be it; provided, however, that it is understood that the defense against telemarketing is only a fragment of the broad mosaic of rights that privacy encompasses."

Do you receive calls from call centers? And how do you react?

"I have received promotional calls, as I think everyone has. But out of respect for privacy, I did not disclose my identity or my role to the callers. This is because the protection of privacy cannot depend on one's role; it is a fundamental right for everyone. I limited myself to pointing out that I was registered in the opposition register, and therefore they should not have called me because I could have taken protective actions. Fully aware, however, that on the other end of the line was often an underpaid and exploited call center operator, and certainly not someone who truly profits from these illicit practices."

So you confirm that you are registered in the Opposition Register?

"Of course, but despite this, to be honest, the calls keep coming."

This is a widespread perception...

"The problem is that we have jurisdiction over the national territory. But if the calls come from abroad, such as from Ireland or Albania, they fall outside territorial jurisdiction. And in this case, there is no Guarantor that can intervene. And I, like all of us, am a victim of this."

As a jurist, you have produced a lot on personal rights and their protection. But from a more personal perspective, was there an episode in your youth from which it could have been anticipated that you would one day become the Privacy Guarantor?

"A confession: if discretion and confidentiality were enough to hold this role, then I have always been the natural candidate. An anecdote: just after turning thirty, I had become a full professor at the University of Salerno. One day, I was standing in front of the classroom where I would give my first lecture to first-year students. The janitor saw me standing there and called out: 'What are you doing there? Go in, the professor will be here soon!' urging me to enter the classroom. I went in and, out of respect for privacy, I never revealed to the janitor that the professor he was warning me about that day was actually me."

Forgive my indiscretion then. About your youthful discretion: were you one of those people—there's one in every group—whom friends confide in, knowing that their secrets wouldn't be exposed?

"Yes, I was the kind of guy—back then they told me—serious and mature, to whom friends, and even girlfriends, turned to express their problems and seek comfort. What makes me smile is that I held various roles, as department head, as dean for eight years, and the difficulty I found was not so much in managing the faculty from a bureaucratic standpoint. No. It was receiving colleagues every day who came to present their problems with wives, girlfriends, children... family issues. And so, the dean in that case, the department head became the secular confessor. Something I had done as a boy and continued to do. Also because I then became a kind of walled safe: I did not divulge, I did not manifest to others these 'confessions' that I had received there, in the chamber of charity."

Was there an episode or event that made you understand more than others how important privacy is? "I appreciated the value of privacy as a fundamental freedom long before the GDPR and the Privacy Code: during a dark period for Italy, the years of lead. In particular, during the terrible days of Aldo Moro's kidnapping, when discussions were held about the restrictive measures to be adopted for investigative purposes, and the possible limitations on freedom of communication to be introduced. These were difficult years, marked by continuous and dramatic tensions, and it was common, especially among the political class, to invoke the specter of public security to severely limit the freedom of citizens. However, fortunately, massive or disproportionate forms of surveillance were avoided at that time: the system of constitutional guarantees and freedom of expression held overall. More recently, there have been other delicate moments, such as September 11, which raised, not only in the USA, a false dichotomy between privacy and state defense. However, Europe has managed, even in these years of tension, not to renounce its democratic and liberal identity. It has remained a 'community of law.' Even during the pandemic, the law managed to govern the exception. Also thanks to data protection."

So, the law has held.

"Yes, because Europe has a middle ground approach to privacy between the unbridled liberalism of the United States and the dirigisme seen in countries where the individual counts for nothing. Now, with the regulation on artificial intelligence, we continue to walk this virtuous path to safeguard ourselves from risks. New technologies offer us many great things, from medicine to research, but they also pose risks. Three years ago, in the first report I made for European Privacy Day, I spoke of 'neuro-rights,' citing Elon Musk and Neuralink, and today we read that Musk has indeed implanted a chip in a human brain to communicate with computers. If this serves to cure neurodegenerative diseases, that is great. But in the hands of a dictator, it could be a technology to manipulate will, and self-determination is one of the most important things."

Do you appreciate science fiction? I ask because today many suggestions about future risks to privacy are effectively imagined in TV series like "Black Mirror," or even in films like "Minority Report," which perhaps inspired the controversial project of "predictive" and indiscriminate video surveillance in Trento...

"One only needs to look at Orwell's '1984' or writers like Neal Stephenson, who in 'Snow Crash' anticipated, as early as 1992, the Metaverse, another worrying scenario for the possibility of committing illicit acts even with the avatars that represent us virtually. Regarding the measure we adopted in Trento: I understand using cameras for security, but if all conversations happening on the street are also recorded, this becomes a dystopian scenario akin to Big Brother. We must safeguard the individual's right to privacy, which jurists Warren and Brandeis defined at the end of the 19th century as 'the right to be left alone in one's intimacy.' The task of ethicists and jurists is to draw the boundary, the 'katechon,' to curb the most extreme forms of progress, without being luddites. Regarding 'predictive law': we cannot reach a scenario where sentences are determined by machines; the human element, the judge, must always intervene to evaluate. Because the judge knows how to understand and assess the human peculiarities of people, while the machine is dangerously neutral. That is why we preach against the absolute preeminence of algorithms. It is important to understand how they are fed. If they are fed well, they are a useful tool. But if, on the other hand, it is done as happened with ChatGPT or Bard, then we must take inhibiting measures to prevent the spread of fake news and to protect minors."

Sam Altman recently wrote on X that, essentially, ChatGPT could not function without drawing, as it has so far, on data protected by copyright, requesting a kind of exemption from the law.

"I had a videoconference with Altman, and he seemed to me a very intelligent person; I am surprised that he resorts to this argument. The argument of the end that, Machiavellianly, justifies the means has always been used to justify the worst anti-democratic distortions. And it is outside a vision that is ethically and legally compliant with our secular tradition and our Constitution."

Are there many Italians who turn to the Garante sending reports, perhaps because they are exasperated by some violation of privacy?

"Last year, the Garante responded to 9,200 complaints and reports concerning marketing, telemarketing, telematic networks, online data from public administrations, cybersecurity, the banking sector, and healthcare, with health data that should not circulate except among the people we authorize to consult our digital health file. In this regard, Parliament approved a law on oncological oblivion a few months ago, which we strongly urged and supported: those who have recovered from cancer should not be penalized at work or by insurance companies. Here is another example of how privacy is a constellation of rights."

What has changed the most in the customs of Italians regarding privacy? If twenty years ago we had been told, "One day you will all have a microphone on 24/7 in your homes," we would have thought of scenarios from East Germany. Instead, today with Alexa...

"Many are unaware, but even certain televisions, dishwashers, and vacuum cleaners have built-in memory and collect all kinds of data to..."

profile us. It is the Internet of Things. It is the "datafication" of life: an anthropological revolution of which we must be aware. And with Covid, this process has undergone an acceleration; an electronic eye, the webcam, has opened in every home allowing us to carry out any activity remotely, but at a price: the invasion into our private lives of non-private dimensions such as work, education, and even legal proceedings. Technology is valuable but must be governed with foresight, keeping an eye on that slippery slope which is the risk of social acceptance of a progressive loss of freedom."

Here, according to her, do digital natives, accustomed to sharing every breath on social media, have a different idea of privacy?

"I am a 'boomer,' so you can imagine how much I have noticed this revolution in customs! Today's kids have grown up in an era where what Michele Serra effectively defines as 'the dictatorship of online presence' and visibility seem to be the only categorical imperative. In meetings with adolescents in schools, we try to make them understand that privacy will be the real battleground on which they will have to actively defend their freedom. We must remind young people that progress is great, but they cannot spend 7-10 hours a day in what I have called 'digital solitude': that is the representation of life, but reality is what is lived offline."

Do you see signs of hope?

"A humorous response: my granddaughter, born just a few days ago, throughout the entire pregnancy did not allow herself to be seen face-on by the ultrasound cameras. Almost as if she were aware of the importance of privacy even in the womb."

One last question about current events: recently there has been talk of hunting tax evaders even through social media. Why is it a privacy issue if social media are public spaces?

"I can make a general distinction without going into too much detail because we are still thinking about the issue. If the tax authorities take information and references from public sites, such as those of public administration, where data is managed transparently, that is one thing. But if we move to private sites like Facebook, we need to be careful. It is true that if I post images where I am celebrating in Dubai and declare little, the tax authorities may become suspicious. But today there are also fake news, deep fakes, and certain things could have been deliberately fabricated. More caution is needed when making deductions using private sites that do not guarantee authenticity."